

		in default. (Code Civ. Proc. § 1010; see <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1301.) Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon. (Code Civ. Proc. § 481.010, et seq.) Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a right to attach order ("RTAO") & writ of attachment by filing an application with the court in which the action is brought. (Code Civ. Proc. § 484.010.) In the discretion of the court, the amount to be secured by the attachment may include estimated costs and allowable attorney's fees. (Code Civ. Proc. §§ 482.110 & 483.015.) The court may only issue a RTAO if it finds the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued - i.e., the claim is: (a) for money based on contract; (b) of a fixed or readily ascertainable amount not less than \$500; (c) either unsecured or secured by personal property; and (d) against an individual, that the claim arises out of the conduct by the individual of a trade, business, or profession.; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.; (3) The attachment is not sought for any purpose other than the recovery on the claim upon which the attachment is based.; (4) The amount secured by the attachment is greater than zero. (Code Civ. Proc. §§ 483.010 & 484.090.) Here, the claim is based on a breach of contract of a fixed amount not less than \$500, which is unsecured. (Compl. ¶¶ BC-2.) As previously noted, the amount sought to be secured is \$233,295.50. (Application, ¶ 8.) Plaintiff establishes the claim is on upon which an RTAO may be based; Plaintiff has established the probability of the claim; the attachment does not appear to be sought for any purpose than the recovery on the claim which the attachment is based; and the amount secured by the attachment is greater than zero. (Chernichovski Decl. ¶¶ 2-9; Exs. A and B thereto.) Based on the foregoing, the Court GRANTS Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order.
3	2021-01194029 <i>Davidson vs. The Boeing Company, Inc.</i>	OFF CALENDAR
4	2023-01318221 <i>Flint vs. Sun Haven Care, Inc.</i>	Demurrer to Complaint Defendants Sun Haven Care, Inc. dba Terrace View Care Center, NAHS Southeast, Inc. and NAHS Holding, Inc.'s Demurrer to the Complaint is SUSTAINED without leave to amend as to the first cause of action and otherwise OVERRULED.

Defendants demur to the first and fourth causes of action of the Complaint filed by Rebecca Flint, individually and as heir and successor-in-interest to Priscilla Florez, deceased.

First Cause of Action: Negligence

Defendants argue that the first cause of action is barred by the statute of limitations in Code of Civil Procedure section 340.5 for professional negligence.

Plaintiff's Opposition concedes that the first cause of action is barred by the statute of limitations. (Opposition, 2:19-20.) Therefore, because Plaintiff concedes as to this cause of action, the demurrer to this cause of action is SUSTAINED.

Because Defendants demur based on the statute of limitations and Plaintiff concedes that it is time-barred, the Court sustains the demurrer without leave to amend as there is no reasonable possibility that the defect can be cured by amendment. (see *Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 69.)

Fourth Cause of Action: Wrongful Death

Defendants demur to the fourth cause of action for wrongful death on the grounds that it is barred by the one-year statute of limitations in Code of Civil Procedure section 340.5. (Demurrer, 3:13-16.)

In Opposition, Plaintiff argues that the two-year statute of limitations applies because the wrongful death cause of action is based on the Complaint's allegations of elder abuse.

In reply, Defendants argue that pursuant to *Quiroz v. Seventh Avenue Center* (2006) 140 Cal.App.4th 1256 (*Quiroz*), a one-year statute of limitations applies to Plaintiff's claim for wrongful death because it is to be distinguished from Plaintiff's elder abuse claim, which carries a two-year statute of limitations as a survivorship action.

Code of Civil Procedure section 340.5 provides in part: "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first."

Further, Code of Civil Procedure section 340.5 gives the following definition for professional negligence: "(2) "Professional negligence" means a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital."

In contrast, Code of Civil Procedure section 335.1, simply states "[a]n action for assault, battery, or injury to, or for the death of, an

individual caused by the wrongful act or neglect of another” shall be brought within two years.

Here, the fourth cause of action incorporates the previous causes of action and alleges that “as a direct result of the foregoing conduct,” decedent died on May 17, 2021, “depriving her family, including Plaintiff, of the society and companionship, affection, moral support, love, care and comfort she provided, including the ability to share and express love as they provided care to Priscilla Florez.” (Complaint, ¶¶ 69, 70.)

Benun v. Superior Court (2004) 123 Cal.App.4th 113, cited by the Opposition (Opposition, 7:1-7) provides an explanation for which statute of limitations applies to a wrongful death claim. The Court in Benun, while citing Delaney v. Baker (1999) 20 Cal.4th 23, explained: “Delaney makes clear that a cause of action for custodial elder abuse against a health care provider is a separate and distinct cause of action from one for professional negligence against a health care provider.” (Id. at 124.) Thus, the Court in Benun concluded: “The Code of Civil Procedure section 335.1 statute of limitations (applicable to causes for ‘assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another’) is facially applicable to elder abuse actions and provides a two-year limitation period...” (Id. at 125-126.)

While Defendants’ reply cites Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256 (Quiroz) to demonstrate Elder Abuse and Wrongful Death are separate and distinct claims, this authority does not support Defendants’ assertion that Code of Civil Procedure 340.5 applies.

While the Court in Quiroz does explain significant differences between claims for Elder Abuse and claims for Wrongful Death, these differences, alone, do not establish that Code of Civil Procedure section 335.1 is inapplicable.

Specifically, the Court in Quiroz explained the differences between Elder Abuse and Wrongful Death claims (namely, the parties entitled to assert them and the types of damages recoverable) for the purpose of showing that a claim for Elder Abuse did not relate back to a timely pled claim for Wrongful Death. (Quiroz, supra, 140 Cal.App.4th at 1278.)

Quiroz does not indicate that Code of Civil Procedure section 335.1 cannot apply to claims for Wrongful Death and, in fact, the issue of whether a wrongful death claim was timely pled was never considered by the Quiroz court. The Quiroz court framed the issue on appeal as: “whether an untimely pleaded survivor cause of action, through which the decedent’s successor in interest seeks damages for the decedent’s predeath injuries (and heightened remedies under the Elder Abuse Act), relates back to a timely filed cause of action for wrongful death through which the decedent’s heir seeks only compensation for her own injuries.” (Id. at 1262.)

Based the foregoing, namely Benun and the allegations of the fourth cause of action as pled, the Court finds that a two-year statute of limitations applies to Plaintiff’s wrongful death cause of action. The Complaint alleges that Plaintiff’s decedent passed away on 5-17-22

		(Complaint, ¶ 34) and the Complaint was filed on 4-10-23. Therefore, the Complaint is timely filed. Thus, Defendants' demurrer to the fourth cause of action is OVERRULED. Plaintiff is to file an amended complaint within 20 days of notice of this ruling. Defendants are to give notice.
5	2021-01198190 <i>Images Luxury Nail Lounge, Inc. vs. State of California</i>	Motion for Summary Judgement and/or Adjudication NO TENTATIVE
6	2021-01217849 <i>Jones vs. Valenzuela</i>	OFF CALENDAR
7	2023-01308368 <i>Mobile Kitchen USA, Inc. vs. Peter Vander Werff Construction, Inc.</i>	1) Application/Request 2) Motion for Change of Venue (Transfer) 1. Motion for Change of Venue (Transfer) Defendant Peter Vander Werff Construction, Inc.'s Motion for Change of Venue is GRANTED. "Where there are multiple parties and causes of action, venue may be proper in more than one county." (Rycz v. Superior Court of San Francisco County (2022) 81 Cal.App.5th 824.) Code Civ. Proc. § 396b states in pertinent part: "(a) Except as otherwise provided in Section 396a [not applicable here], if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court. ¶ (b) In its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney's fees incurred in making or